



POLICE DEPARTMENT

May 29, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208452 (Incident Date: December 5, 2022) regarding Sergeant John Bonhomme, Tax No. 954559 (DADS No. 2024-30528)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202208452, pertaining to Sergeant John Bonhomme. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Bonhomme would be detrimental to the Police Department's disciplinary process.

In this matter, Sergeant Bonhomme and other uniformed members of the service stopped the complainant due to a call of a robbery in progress. Immediately before the complainant was stopped, the patrol supervisor gave the description of the outstanding perpetrators over the radio. Members were to look out for two males, black, approximately 15 years old, and wearing all black. Soon after this description was broadcasted over division radio, Sergeant Bonhomme stopped the complainant near where the patrol supervisor said the suspects were running. Sergeant Bonhomme then instructed one of his officers to obtain the complainant's identification. Sergeant Bonhomme informed the complainant why he was stopped, gave the complainant a business card, released the complainant after a negative show up, and ensured an officer completed a stop report to document their actions.

After reviewing the available evidence, the Police Commissioner finds that the search of the complainant for identification was improper, however, the stop was in accordance with applicable

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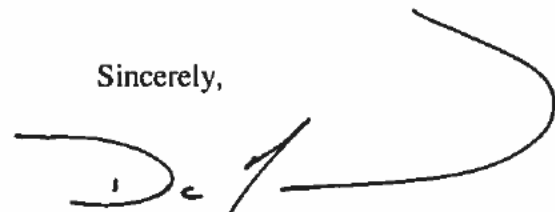
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laws and policies and the law enforcement action was not racially motivated. While the complainant did have on a multicolored jacket, he was wearing a black hoodie beneath it as well as a black cap and black pants, and he was running in the area where the suspects were believed to be. There is no reason to discredit Sergeant Bonhomme's belief that a robbery suspect may put on a jacket to change their description to evade police. Thus, the Police Commissioner finds that, based on the totality of the circumstances, Sergeant Bonhomme had reasonable suspicion to conduct a level three stop of the complainant. However, he did not have an articulable reason to order a search of the complainant.

Finally, there is no direct or circumstantial evidence to show that Sergeant Bonhomme's stop of the complainant was racially motivated. Just as he explained it to the complainant during the stop, Sergeant Bonhomme correctly considered the complainant's race as but *one* of many reasons for the stop. The complainant is a male, black, looked to be in his early twenties, was wearing a black hoodie underneath a multicolored jacket, a black cap, and black pants, and was running near the location where the suspects were believed to be. The sergeant was looking for two males, black, approximately 15 years old, wearing all black, and running from that location.¹ Although the complainant was not a perfect match for the description, that alone cannot support a finding that Sergeant Bonhomme stopped him solely because he is black. Even an improper stop, not based on reasonable suspicion, is not in and of itself indicative of bias-based policing. For these reasons, the Police Commissioner finds that Sergeant Bonhomme did not take law enforcement action against the complainant based on his race.

Sergeant Bonhomme has had an exemplary career with the Police Department, and has received 11 medals, including a Police Combat Cross and an Honorable Mention. He has no prior substantiated CCRB allegations and no prior formal disciplinary history. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the improper stop and bias-based policing allegations. However, the Police Commissioner intends to direct the issuance of a Schedule "A" Command Discipline for the improper search allegation.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

¹ The earlier descriptions provided by the confirmed caller were for two males, black, approximately 15 years old, with one wearing a black jacket, blue hoodie, and blue jeans and the other wearing a green hoodie and black vest. The description of two males, black, wearing all black was provided later over division radio by the patrol supervisor who was with the victim. This later description is what was provided to Sergeant Bonhomme.



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

June 4, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza New York, New
York 10038

**RE: CCRB Case No. 202208452
(DADS No. 2024-30528)**

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated May 29, 2024 (hereinafter referred to as the “letter”) informing the Civilian Complaint Review Board (CCRB) of the Police Commissioner’s intent to impose no disciplinary action against Sergeant Bonhomme for the substantiated allegations that he conducted an improper stop and engaged in biased policing based on race.

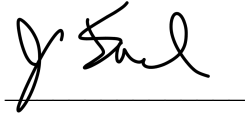
Contrary to the letter’s assertions, the evidentiary record in the CCRB’s investigation does not support a finding that SGT Bonhomme had reasonable suspicion to conduct a level three Terry stop of the complainant in this case. Specifically, the evidence shows that the complainant did not match the description of the suspects in the robbery that allegedly occurred shortly before SGT Bonhomme stopped the complainant. The descriptions initially transmitted over the NYPD radio were of a 15-year-old Black male wearing a black jacket, blue hoodie and blue jeans and a 15-year-old Black male wearing a green hoodie and black vest. In contrast, the complainant was, at the time of this incident, a six foot-tall, 180-pound, 29-year-old Black male with blue-dyed hair, facial piercings, and dressed in a pink, purple, and blue patterned jacket, black hoodie and black pants with large white reflective stripes down both sides. The letter’s assertion that SGT Bonhomme acted pursuant to a subsequent suspect description of two 15-year-old Black males wearing all black is contradicted by SGT Bonhomme’s recorded statement to the CCRB investigation that he stopped the complainant based on the initial description of a 15-year-old Black male in a black jacket, blue hoodie, and blue jeans, with no mention of the subsequent description of the 15-year-old Black males dressed in all black. Moreover, the complainant did not match this latter description either because, as clearly depicted on the officers’ body-worn camera footage of the incident, he looked significantly older than 15, and neither his jacket nor his pants were all black. Thus, none of the suspect descriptions transmitted over the NYPD radio on the night of the incident provided SGT Bonhomme with reasonable suspicion for his stop of the complainant in this case, and the fact that the complainant was seen running in the vicinity of a recently reported robbery is not enough, by itself, to establish reasonable suspicion for a Level 3 Terry stop. See People v. Figueroa, 58 A.D.2d 655 (2d Dep’t 1977).

In addition, the letter relies on an incorrect legal standard to conclude that SGT Bonhomme did not engage in racially-biased policing. The letter states that SGT Bonhomme “correctly considered the complainant’s race as but one of many reasons for the stop,” and argues that the fact the complainant

did not match the description of the robbery suspects “cannot support a finding that Sergeant Bonhomme stopped [the complainant] solely because he is black.” Letter at 2. However, NYPD Administrative Guide 304-17: Department Policy Prohibiting Racial Profiling and Bias-Based Policing prohibits stops and other enforcement actions that are “motivated even in part by a person’s actual or perceived race,” and further specifies that unless an officer has reasonable suspicion that the stopped person fits a “specific and reliable suspect description that includes not just race, age and gender, but other identifying characteristics or information, . . . race [] may not be used at all as a motivation or justification for the stop.” Thus, because, as discussed above, the complainant did not match any details of the robbery suspect descriptions beyond race and gender, SGT Bonhomme’s admitted consideration of the complainant’s race “as one of many reasons for the stop” was improper and constitutes a racially-biased law enforcement action under Administrative Guide 304-17.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, the CCRB believes that the charges and specifications recommended for the substantiated improper stop and racially-biased policing allegations against SGT Bonhomme are appropriate and consistent with the goals of the NYPD’s Disciplinary Matrix and in the interest of justice, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against SGT Bonhomme for both specifications.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "J. Darche", is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

June 5, 2024

Jonathan Darche
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New York City Civilian Complaint Review Board
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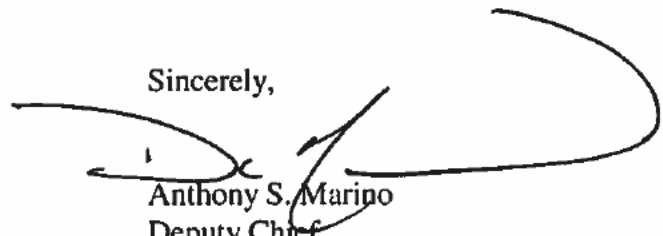
Re: CCRB Case No. 202208452 (Incident Date: December 5, 2022) regarding Sergeant John Bonhomme, Tax No. 954559 (DADS No. 2024-30528)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated June 4, 2024, concerning the Civilian Complaint Review Board (“CCRB”) case involving Sergeant John Bonhomme. Nevertheless, he maintains that it would be detrimental to the Police Department’s disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Bonhomme for the reasons expressed in my May 29, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed for the improper stop and bias-based policing allegations. However, the Police Commissioner also directs that Sergeant Bonhomme be issued a Schedule “A” Command Discipline for the improper search allegation.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner’s Office